

Before the
U.S. COPYRIGHT OFFICE
LIBRARY OF CONGRESS

In the Matter of Section 1201 Study: Notice and
Request for Public Comment

[Docket No. 2015–8]

Reply Comment of Peter Decherney

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I. Introduction

This Reply Comment is submitted on behalf of Peter Decherney, Professor of Cinema and Media Studies and English at the University of Pennsylvania. Parties interested in contacting the submitter should contact Jung Kim and Malgorzata Mrzyk by email at jungkim1@gmail.com or mmrzyk21@gmail.com.

Prof. Decherney has participated on four occasions in Copyright Office triennial rulemaking proceedings established under the Digital Millennium Copyright Act, (“DMCA”) to discuss exemptions to the prohibition against circumvention of technological measures that control access to copyrighted works. In various submissions, he has been joined by organization such as the College Art Association, International Communication Association, Library Copyright Alliance, Society for Cinema and Media

Studies, American Association of University Professors, International Communication Association, and the Library Copyright Alliance.

II. Summary Of Original Comment

In our initial Comment we argued that it is within the Copyright Office's delegated authority to make two important changes.

1. In the absence of evidence to the contrary, a showing of reliance on or continued use of an existing exemption should be sufficient to demonstrate that harm would result in its absence. The Office can accomplish this change by adopting a burden-shifting framework for "renewal" applications.
2. The creation of a database of evidence used at previous rulemakings and maintained in its original format can assist repeat applicants in making their presentations both efficiently and effectively.

In reviewing the other comments that were submitted, we noted several arguments that tend to confirm the importance of our proposals and provide examples of our ideas.

In New Media Rights initial comments, they rightly point out that participants in the 1201 rulemaking process consume significant resources, both time and money. But they also point out that the effect of these burdens falls asymmetrically upon the parties. Simply put, organizations such as the Motion Pictures Association of America, who have served as opponents in the exemption proceedings multiple times, have vastly superior resources compared to most proponents. In 2013, MPAA had a total budget of

over \$65,000,000.¹ In contrast, many proponents are either individuals or nonprofit organizations with limited resources and are oftentimes represented by small law school clinics and other organizations that have at most a few attorneys on staff. These pro bono resources have heavy client loads unrelated to assisting in the 1201 rulemaking proceedings, and because of resource constraints, it can be difficult for the proponents of exceptions to get representation. This structural imbalance is further exacerbated by the Office's current interpretation of the de novo standard because proponents seeking exemptions must start anew at every successive review even if there is no significant basis for opposition. Adopting a burden shifting framework would help mitigate the disproportionate burdens that proponents face, leading to a more balanced and fair system.

The Cyberlaw Clinic at Harvard Law School provides concrete evidence of this substantial burden on proponents seeking exemptions. In their initial comment, they indicate that in aggregate, the attorneys, students and interns spent approximately 575 hours in working on various aspects of obtaining an exemption on behalf of their clients.² The Cyberlaw Clinic indicates that the amount of time spent working on the exemption exceeds the estimated average hours spent litigating many types of civil trials.³ It is

¹ Initial comment New Media Rights, In the matter of Section 1201 Study citing Guidestar Premium, Report Generated for Motion Pictures Association of America, <http://www.guidestar.org/ViewPdf.aspx?PdfSource=0&ein=13-1068220> (last visited Feb. 11, 2016).

² Initial comment Cyberlaw Clinic at Harvard Law School, In the matter of Section 1201 Study at 1.

³ Id citing Paula Hannaford-Agor et al., Estimating the Cost of Civil Litigation, National Center for State Courts (Jan. 2013), http://www.courtstatistics.org/~/_media/microsites/files/csp/data%20pdf/csph_online2.ashx (estimating a median time for most forms of civil litigation as

likely that without the assistance of pro bono law clinics, these individuals and organizations face real barriers when they seek exemptions due to a lack of the requisite expertise, time, and money.

The initial comment by the Institute of Scrap Recycling Industries has a good discussion of why, in the context of discussing the de novo standard, the Register's reliance on House Manager's Report should not be persuasive as legislative history. Oddly, for example, the Report was written after the bill had already passed the House. Furthermore, the rulemaking section of the statute went through so many substantive changes between the time the Report was drafted and the final bill adopted that there simply is no basis for giving the Report's mention of de novo review any credible weight. "For instance, the Commerce Committee version would have mandated the rulemaking proceeding to happen every two years, instead of three. Four agencies would have been involved, instead of two. Moreover, the Register of Copyrights would not even have been the leading entity in the rulemaking process: the Secretary of Commerce would."⁴ Perhaps most notably, the Senate-House Conference report that followed the final version of the bill does not discuss any de novo requirement.⁵

We also want to address several submissions that could be understood as in conflict with our proposals. Some are found in the initial comment of a coalition made up of the Association of American Publishers, Motion Picture Association of America, and Recording Industry Association of America. (Hereinafter "AAP, MPAA, and

taking between 196 and 472 attorney hours, depending on type, including trial and post-trial disposition).

⁴ Initial comment of Institute of Scrap Recycling Industries Inc, In the matter of Section 1201 Study at 12.

⁵ See H.R. Conf. Rep. 105-796 at 64.

RIAA”) We, along with many other commenters, disagree with AAP, MPAA, and RIAA’s assessment that the current rules for the rulemaking are “fair, practical and consistent with Congress’ instructions.”⁶ As we have stated in our initial comment, the current rules favor the opponents of proposed exemptions, as they currently can rely merely on the fact that proponents have not satisfied their high burden, rather than making any showing of their own – even where an exception has already been approved in a prior rulemaking. As we have stated in our initial comment, a more balanced approach in such situations would shift the initial burden onto opponents once a proponent has made a formal request for the reissuing of an existing exception, and submitted evidence to show that it currently is being employed. This is beneficial because it ensures that the burden is upon the party whose in the best position to evaluate whether there is a change in circumstance.

Notably, AAP, MPAA, and RIAA are not opposed in principle to the Register recommending renewals of existing exemptions as long as there is no “meaningful opposition to renewal.” However, AAP, MPAA, and RIAA does not elaborate on what is meant by meaningful opposition, and in contrast to their vague proposal, what we offer in our initial comment is a specification for what this would actually mean. By meaningful opposition, we mean that the opponent of an exemption would have to demonstrate that there was a change of circumstance that justified no longer granting an exemption.

Furthermore, AAP, MPAA, and RIAA are concerned that a presumptive renewal framework would lead the renewal of exemptions that are no longer in use. As a practical matter, this concern is not reflective of the realities of the process. No

⁶ Initial comment of AAP, MPAA, and RIAA, In the matter of Section 1201 Study at 11.

proponent will spend significant time and effort in seeking an exemption that is obsolete. In addition, the framework that we propose in our initial comment addresses the concern regarding obsolescence by requiring proponents to make a positive showing of reliance or continued use.

Moreover, AAP, MPAA, and RIAA's characterization of the current de novo standard is misleading. They assert that "if a proponent submits comments to the Register stating that the exemption has been used and that the circumstances that justified granting the exemption during the prior cycle remain unchanged, and no opponent presents meaningful opposition to rebut that claim, the Register can recommend to the Librarian that the exemption be renewed without change."⁷ What this omits is the fact that where a previously granted exception has been granted and is operating successfully, current adverse impact – which is likely to be the best indicator of future impact – may be difficult or impossible to find. Under the existing rules, any proponent of a renewal would be taking a significant risk by relying on the strategy AAP, MPAA and RIAA recommend.

We agree with AAP, MPAA, RIAA that testimony and evidence should be considered by the Register and Librarian regardless of which specific exemption it was intended to support. We would go further and add that evidence should be preserved for future rulemaking proceedings as well, as resubmitting identical evidence is wasteful for all parties.

⁷ Initial comment of AAP, MPAA, and RIAA, In the matter of Section 1201 Study at 12 citing Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, Notice of Inquiry and Request for Petitions, 79 Fed. Reg. 55,687, 55,690 (Sept. 17, 2014).

We limited our suggestions in our initial comment to proposals that are within the Copyrights Office's authority to implement immediately. In our review of the other comments we noted that other suggestions might require new substantive legislation. If such legislation were to occur, these suggestions would help address some of our concerns regarding the rulemaking process by narrowing the range of situations in which it would need to be employed. These suggestions, which overlap in their application, include calls for

1. A declaration that Section 1201 does not apply where the technological measure protects noncopyrightable aspects of software or markets for physical objects that the software controls.⁸
2. Proposing a permanent exemption that allows for circumvention for all lawful uses- all uses permitted by the Copyright Act.⁹ This idea was proposed by the Unlocking Technology Act, and would allow libraries and universities, among others, to focus on whether a use qualifies as fair or is permitted by another exemption.¹⁰
3. Providing rightsholders with the opportunity to register a technological protection measures, and to maintain such registrations by paying a periodic fee; in absence of a registration, the protections of Sec. 1201 would not apply. This would ensure that existing technological protection measures are appropriate and address the concern,

⁸ Initial comment of Auto Care Association, In the matter of Section 1201 Study at 3.

⁹ Initial comment of MIT Libraries, MIT Press, and MIT Office of Digital Learning, In the matter of Section 1201 Study at 5.

¹⁰ Id at 5

stated by, among others, AAP, MPAA and RIAA, about granting protections for obsolete measures.¹¹

¹¹ Initial comment of Knowledge Ecology International, In the matter of Section 1201 Study at 9-10.